

Brijendra Singh Tewatiya v. State of U.P.

Allahabad High Court · Division Bench · 15 July 2016 · Writ - C No. 21937 of 2016 · **Demand notice and recovery certificate quashed; fresh assessment permitted.**

HEADNOTE

Clause 6.8(b) of the U.P. Electricity Supply Code, 2005 is mandatory. A provisional assessment made without notice and without fixing a date of hearing cannot support a demand notice or recovery certificate. Both were quashed, leaving the licensee free to assess afresh after following the prescribed procedure.

FACTUAL SUMMARY

Brijendra Singh Tewatiya challenged a demand notice dated 13 March 2015 and a recovery certificate dated 29 December 2015 issued by officers of the distribution licensee. He alleged that assessment had been completed without a provisional assessment bill, without an opportunity to object, and without a date of hearing. On 12 May 2016 the Court directed the licensee's counsel to take instructions on those allegations. When the matter was next taken up, a counter-affidavit for the licensee respondents was filed and taken on record.

REUSABLE CONSTRUCTIONS

1. Clause 6.8(b) of the U.P. Electricity Supply Code, 2005 is mandatory; a provisional assessment made without notice and without fixing a date of hearing cannot stand. ¶ 1
2. A demand notice and recovery certificate founded on a provisional assessment made in breach of clause 6.8(b) are liable to be quashed, without prejudice to a fresh assessment after following the prescribed procedure. ¶ 1

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8(b)

provisional assessment — notice and hearing

HOLDING

Clause 6.8(b) of the U.P. Electricity Supply Code, 2005 is mandatory. Where provisional assessment is made without issuing notice and without fixing a date of hearing, the demand notice and recovery certificate cannot stand and are liable to be quashed. The licensee remains free to make a fresh assessment after following the prescribed procedure. ¶ 1

PRINCIPLE TAGS

clause-6.8-hearing-procedure-mandatory-before-uue-conclusion Clause 6.8(b) of the U.P. Electricity Supply Code, 2005 is mandatory. A provisional assessment made without notice and without fixing a date of hearing cannot support a demand notice or recovery certificate. Both were quashed, leaving the licensee free to assess afresh after following the prescribed procedure. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS AND QUANTUM OF THE ASSESSMENT

Respondents left free to make a fresh assessment after following the prescribed procedure. ¶ 1

